

ASCII MASTER FLOW – PANEL 1/12: Two Offices, Parliamentary Design And Current Control

PRESIDENT: Articles 52-62, 72 and 74; constitutional Head of State
VICE-PRESIDENT: Articles 63-71; regular role is Rajya Sabha Chair
Articles 53, 74 and 75 make the President nominal in ordinary government
The Vice-President acts temporarily, never succeeds for an unexpired term
CURRENT 28 AUG 2026: Droupadi Murmu is President
CURRENT 28 AUG 2026: C. P. Radhakrishnan is Vice-President

MECHANISM

Parliamentary government separates formal constitutional dignity from politically accountable executive power.

ANSWER LINE

The President is a constitutional sentinel without a rival popular mandate; the Vice-President is principally a parliamentary presiding officer.
MUST REMEMBER: Map Articles 52-73 office by office: electoral colleges, vote values, qualifications, oath, term, vacancy, impeachment/removal, Article 71 disputes, aid and advice, veto, ordinance and clemency require separate procedural chains.

ASCII MASTER FLOW – PANEL 2/12: Election Colleges And Statutory Timeline

ARTICLE 54: elected MPs plus elected State, Delhi and Puducherry MLAs

PRESIDENT EXCLUDES: nominated members and all Legislative Council members

ARTICLE 66: both Houses of Parliament, elected and nominated; no MLAs

1952 ACT: notification, nomination, scrutiny, withdrawal, poll and petitions

1974 RULES: forms, ballot and counting machinery

1997 REFORM: President 50+50; VP 20+20; Rs 15,000 deposit

MECHANISM

Constitutional electoral design is administered through the 1952 Act, 1974 Rules and anti-frivolous-candidature reform.

ANSWER LINE

Never transfer one office's electoral college or nomination threshold to the other.

ASCII MASTER FLOW – PANEL 3/12: Vote Value, Pr-Stv, Count And Article 71

MLA VALUE: 1971 population / elected MLAs / 1000 with constitutional rounding

MP VALUE: total MLA vote value / elected MPs of both Houses

The same elected-MP vote value applies in Lok Sabha and Rajya Sabha

PR-STV uses ranked secret ballots and transferable preferences

Winning quota is more than half of valid vote value

ARTICLE 71: Supreme Court finally decides both presidential and vice-presidential disputes

MECHANISM

Weighted votes seek Union-State parity, while transferable preferences seek majority support for a single office.

ANSWER LINE

Vacancies in the college do not invalidate the election, and a void election does not erase prior official acts.

ASCII MASTER FLOW – PANEL 4/12: Qualifications, Oath, Term, Vacancy, Removal And Immunity

PRESIDENT: citizen, 35, Lok Sabha qualification, no disqualifying office of profit

VICE-PRESIDENT: citizen, 35, Rajya Sabha qualification, no disqualifying office of profit

President oath: CJI or senior-most available Supreme Court judge; VP oath: President or appointee

Both terms are five years; re-election is not constitutionally capped

President casual vacancy: election within six months; VP vacancy: as soon as possible

ARTICLE 61 impeachment differs from Article 67(b) VP removal; Article 361 is procedural immunity

MECHANISM

Separate eligibility, continuity and removal rules protect each office according to its constitutional function.

ANSWER LINE

Nominated MPs impeach but do not elect the President; State MLAs elect but do not impeach.

ASCII MASTER FLOW – PANEL 5/12: Aid, Advice And Bounded Situational Discretion

ARTICLE 74: Council of Ministers with Prime Minister aids and advises

42ND AMENDMENT: advice expressly binding

44TH AMENDMENT: one reconsideration; reiterated advice binds

SHAMSHER SINGH (1974): constitutional head works through responsible government

Hung House: identify the person most likely to command Lok Sabha confidence

ARTICLE 163 recognises only constitutionally required gubernatorial discretion, not an unlimited domain

MECHANISM

Binding advice governs normal politics; narrow situational judgment protects continuity when a clear accountable majority is absent.

ANSWER LINE

The President may warn, seek information and return advice once, but cannot create a personal executive programme.

ASCII MASTER FLOW – PANEL 6/12: Presidential Power Clusters And Accountability

EXECUTIVE: appointments, Rules of Business and Article 78 information

LEGISLATIVE: sessions, dissolution, addresses, messages, nominations and joint sitting

FINANCIAL: recommendation routes, Budget, Contingency Fund and Finance Commission

JUDICIAL: appointments, Article 143 reference and Article 72 clemency

DIPLOMATIC AND MILITARY: formal authority subject to constitutional government

EMERGENCY: Articles 352, 356 and 360 under separate Part XVIII safeguards

MECHANISM

The office has broad formal powers, but ministerial responsibility, statute and judicial review allocate real decision-making authority.

ANSWER LINE

A complete answer names the exact power, advice route, legal limit and accountability mechanism.

CLOSE DISTINCTION: The President is indirectly elected by elected MPs and elected MLAs of States plus Delhi and Puducherry; the Vice-President is elected by all members of both Houses. Presidential impeachment under Article 61 and Vice-Presidential removal under Article 67(b) are not interchangeable.

ASCII MASTER FLOW – PANEL 7/12: Article 111 Veto And Article 201 Reserved Bills

ORDINARY UNION BILL: assent, withhold or return once; repassage requires assent

MONEY BILL: assent or withhold; cannot be returned

CONSTITUTION AMENDMENT BILL: assent is obligatory after the 24th Amendment

ARTICLE 111 sets no decision deadline, creating the pocket-veto possibility

ARTICLE 201: reserved non-Money State Bill may be returned through the Governor

2025 INSC 1333: no court-made rigid clock or deemed assent; glaring unexplained delay remains reviewable

MECHANISM

Bill type and constitutional route determine whether return, withholding, repassage or review is available.

ANSWER LINE

Do not apply Article 111's mandatory assent after repassage to a State Bill under Article 201.

ASCII MASTER FLOW – PANEL 8/12: Article 123 Ordinance Lifecycle And Case Control

TRIGGER: both Houses not simultaneously in session and immediate action necessary

FORCE: Act-like, within Parliament competence and Fundamental Rights

CAPACITY: may amend Central law and operate retrospectively within constitutional limits

EXIT: laid before both Houses; ceases six weeks after later reassembly unless earlier ended

D.C. WADHWA (1986): routine re-promulgation is fraud on the Constitution

KRISHNA KUMAR SINGH (2017): laying mandatory; satisfaction reviewable; no automatic enduring rights

MECHANISM

An ordinance bridges an urgent legislative gap; mandatory laying prevents it becoming an executive substitute for Parliament.

ANSWER LINE

The constitutional cure for ordinance abuse is scrutiny and anti-re-promulgation, not denial of genuine urgency.

ASCII MASTER FLOW – PANEL 9/12: Article 72 Clemency, Review And Governor Contrast

FIVE FORMS: pardon, reprieve, respite, remission and commutation

PRESIDENT: court-martial, Union-field offences and every death sentence

GOVERNOR: State field; no court-martial pardon and no death-sentence pardon

MARU RAM (1980): clemency follows binding ministerial advice

KEHAR SINGH (1988): executive may examine merits afresh without becoming an appellate court

EPURU SUDHAKAR (2006): limited review for mala fides, arbitrariness and material defects

MECHANISM

Clemency is executive grace structured by jurisdiction, responsible-government advice and rule-of-law review.

ANSWER LINE

Courts review defects in clemency decision-making; they do not substitute their own mercy decision.

ASCII MASTER FLOW – PANEL 10/12: Vice-President: Election, Term, Removal And Vacancy

ARTICLE 66: all elected and nominated MPs; equal votes; PR-STV secret ballot

QUALIFICATION: citizen, 35 and qualified for Rajya Sabha

ARTICLE 67(b): Rajya Sabha effective-majority resolution; Lok Sabha agreement

Removal begins only in Rajya Sabha, needs 14 days notice and states no ground

ARTICLE 68: casual vacancy election as soon as possible, with a fresh five-year term

ARTICLE 71: Supreme Court election-dispute route applies to the Vice-President too

MECHANISM

The Vice-President's narrower parliamentary electorate matches the office's principal Rajya Sabha function.

ANSWER LINE

Vice-presidential removal is not impeachment, and its casual-vacancy rule has no presidential six-month deadline.

ASCII MASTER FLOW – PANEL 11/12: Rajya Sabha Chairman And Acting-President Role

ARTICLE 64: ex-officio Chairman and not a Rajya Sabha member

ARTICLE 100: no first vote; casting vote on equality

ARTICLE 92: during own removal debate, may speak but cannot preside or vote

TENTH SCHEDULE: decides Rajya Sabha defection cases subject to judicial review

ARTICLE 65: acts as President during vacancy or inability

While acting as President, Deputy Chairman performs Rajya Sabha Chair duties

MECHANISM

The Chair's procedural authority becomes legitimate only through consistent, reasoned and visibly impartial exercise.

ANSWER LINE

For the 2022 PYQ, compare the Chairman with the Lok Sabha Speaker and end on federal-chamber neutrality.

ASCII MASTER FLOW – PANEL 12/12: Pyq Firewall, Answer Spines And Qualified Verdict

EIGHT VERIFIED PYQS: 2018, 2022, 2023 and 2025 routes

PRELIMS: colleges, vote values, void election, assent, ordinance and clemency

10 MARKS: provision -> mechanism -> case/example -> limit -> verdict

15 MARKS: design -> procedure -> comparison/critique -> balanced verdict

20 MARKS: constitutional position -> power clusters -> advice/review -> reform

STRICT PRACTICE: 28 original + 8 remedial MCQs in ABCD x 9 rotation

MECHANISM

Exam execution moves from the exact Article to mechanism, evidence, qualification and a directive-sensitive conclusion.

ANSWER LINE

The two offices preserve continuity without displacing parliamentary responsibility: dignity and discretion remain constitutionally bounded.

LEGAL/SOURCE LIMIT: Current office control is Droupadi Murmu as President and C. P.

Radhakrishnan as Vice-President, elected 9 September and assuming office 12 September 2025.

Articles 72 and 123 remain advice-bound and judicially reviewable within settled constitutional limits.